

26TRCV00252 26TRCV00252

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-28

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Case Number: 26TRCV00252 Hearing Date: July 28, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LVNV FUNDING LLC

;

Plaintiff,

vs.

JORDAN PETERSON

;

Defendant.

Case

No.:

26TRCV00252

Hearing

Date:

July
28, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) PLAINTIFF

LVNV FUNDING LLC'S MOTION FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO
DEFENDANT JORDAN PETERSON ADMITTED

(2)

PLAINTIFF LVNV FUNDING LLC'S REQUEST FOR MONETARY
SANCTIONS

MOVING PARTY: Plaintiff, LVNV Funding LLC

RESPONDING

PARTY: No opposition.

(1)

Plaintiff

LVNV Funding LLC's Motion for Order Deeming Request for
Admissions to Defendant Jordan Peterson Admitted is DENIED pursuant to Code of
Civil Procedure section 1005, subdivision (b).

(2)

Plaintiff

LVNV Funding LLC's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure section
1005, subdivision (b).

The Court considers the moving
papers filed on May 14, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On January 23, 2026, plaintiff LVNV Funding LLC ("Plaintiff") filed the Complaint against defendants Jordan Peterson and DOES 1 through 5. The Complaint includes one cause of action for (1) Breach of Contract.

On March 13, 2026, Plaintiff served Requests for Admission, Set One, on Defendant. (Declaration of Laura M. D'Anna ("D'Anna Decl."), ¶ 2, Exh. 1.) The deadline for Defendant to respond was April 17, 2026. (D'Anna Decl., ¶ 2.) However, as of the date of filing, Defendant had not provided any responses. (D'Anna Decl., ¶ 3.)

LEGAL STANDARD

A party must respond to requests for admission within thirty (30) days after service. (Code Civ. Proc., § 2033.250, subd. (a).)

Pursuant to Code of Civil Procedure section 2033.280, "[i]f a party to whom requests for admission are directed fails to serve a timely response," the court shall make the order deeming the truth of the matters admitted unless the responding party serves before the hearing a proposed response to the requests for admission that is in substantial compliance with Code Civil Procedure section 2033.220. Code of Civil Procedure section 2033.220 requires each answer to either admit, deny, or specify that the responding party lacks sufficient information or knowledge. As stated in *Demyer v. Costa Mesa Mobile Home Estates*, the moving party is not required to meet and confer before bringing this action. (*Demyer v. Costa Mesa Mobile Home Estates*, 36 Cal.App.4th 393, 395.)

"The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., §

2033.280, subd. (c).)

Under Code of Civil Procedure section 2023.030, subdivision (a), "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).)

"Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery. (g) Disobeying a court order to provide discovery." (Code Civ. Proc., § 2023.010, subds. (d), (g).)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California, 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States, 12 calendar days if the place of address is the

Secretary of State's address confidentiality program (Chapter 3.1 (commencing with Section 6205) of Division 7 of Title 1 of the Government Code), and 20 calendar days if either the place of mailing or the place of address is outside the United States, and if the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 16-day period of notice before the hearing shall be increased by two calendar days." (Code Civ. Proc., § 1005, subd. (b).)

A review of the Court's docket indicates that Plaintiff filed the motion on May 14, 2026. Given that the motion is scheduled for hearing on July 28, 2026, Plaintiff was obligated to file and serve the moving papers by July 6, if served personally. However, the proof of service indicates that the motion was mailed to 1209 E Oak Ave., El Segundo, CA 90245. (PoS, p. 2.) In contrast, Defendant's address is 13509 S. Raymond Ave., Gardena, CA 90247, which is the same address Plaintiff utilized to serve the relevant Requests for Admissions, Set One. (D'Anna Decl., Exh. 1, p. 17.) Consequently, Plaintiff did not serve Defendant with this motion.

Accordingly, the Plaintiff's motion and the accompanying request for monetary sanctions is DENIED.

ORDERS

1) Plaintiff

LVNV Funding LLC's Motion for Order Deeming Request for Admissions to Defendant Jordan Peterson Admitted is DENIED.

2) Plaintiff

LVNV Funding LLC's Request for Monetary Sanctions is DENIED.

3) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Tamara
Hall

Judge
of the Superior Court